

Court No. - 3

Case :- WRIT - C No. - 1759 of 2023

Petitioner :- Ram Bahadur

Respondent :- Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd. Lko. And Another

Counsel for Petitioner :- Akhilesh Kumar Mishra, Manoj Kumar Dwivedi

Counsel for Respondent :- Amit Kumar Dwivedi

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Manish Kumar, J.

(1) Heard the learned counsel for the petitioner and Shri Amit Kumar Dwivedi, who appears for the Respondents.

(2) This petition has been filed by the petitioner for the following main prayer:-

"(i) Issue a writ, order or direction in the nature of Certiorari quashing the impugned notice dated 24.02.2022 issued by the Opposite party no.2, contained in Annexure No.1 to this writ petition."

(3) It is the case of the petitioner that a provisional assessment was given to him on 10.01.2022 for alleged unauthorized use of electricity. The petitioner submitted his Representation / Objection to the provisional assessment, but without considering his objections, the final assessment has been made on 24.02.2022.

(4) Learned counsel for the petitioner has placed reliance upon **6.8 (b) (i) of the Electricity Supply Code, 2005**. The relevant provision is being quoted hereinbelow:-

"6.8 (b) Notice to the Consumer and his reply:-

(i) If the Assessing Officer reaches to a conclusion that Unauthorized Use of Electricity has taken place (as defined under Explanation to Section 126 of the Act), he shall serve a provisional assessment bill along with show cause notice to the consumer giving 15 working days for submission of reply under proper receipt fixing a date & time of hearing. The notice shall invite objections in writing from the consumer, against the charges and provisional assessment and require presence of the consumer on the date of hearing."

(5) This writ petition is **allowed by setting aside** the final assessment dated 24.02.2022 and directing the Executive Engineer, concerned to follow the provision of the Electricity Supply Code and give opportunity of hearing to the petitioner by fixing a Date, Time and Place for such hearing and then pass final assessment order within a period of **six weeks from today**.

Order Date :- 3.3.2023

N.PAL